

HOUSE No. 1646

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to modify the rules for taking depositions outside the Commonwealth and to adopt the uniform interstate depositions and discovery act.

PETITION OF:

NAME:

Michael S. Day

DISTRICT/ADDRESS:

31st Middlesex

DATE ADDED:

1/17/2025

HOUSE No. 1646

By Representative Day of Stoneham, a petition (accompanied by bill, House, No. 1646) of Michael S. Day for legislation to modify the rules for taking depositions outside the Commonwealth and to adopt the uniform interstate depositions and discovery act. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4327 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to modify the rules for taking depositions outside the Commonwealth and to adopt the uniform interstate depositions and discovery act.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 223A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting, after section 14, - the following section:-

3 Section 15. (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “Foreign action”, a court action or proceeding brought or pending in a foreign
6 jurisdiction.

7 "Foreign jurisdiction", a state other than the commonwealth of Massachusetts.

8 "Foreign subpoena", a subpoena issued under authority of a court of record in a foreign
9 jurisdiction.

10 "Person", an individual, corporation, business trust, estate, trust, partnership, limited
11 liability company, association, joint venture, public corporation, government, or governmental
12 subdivision, agency or instrumentality, or other legal entity.

13 "State", a state of the United States, the District of Columbia, Puerto Rico, the United
14 States Virgin Islands, a federally recognized Indian tribe, or any territory or insular possession
15 subject to the jurisdiction of the United States.

16 "Subpoena", a document, however denominated, issued under authority of a court of
17 record requiring a person to: (i) attend and give testimony at a deposition; (ii) produce and permit
18 inspection and copying of designated books, documents, records, electronically stored
19 information or tangible things in the possession, custody or control of the person; or (iii) permit
20 inspection of premises under the control of the person.

21 (b)(i) To request the issuance of a subpoena under this section, a party shall submit a
22 foreign subpoena or court order from a foreign jurisdiction to a clerk of court in the county in
23 this commonwealth in which discovery is sought, along with: (A) a Massachusetts subpoena for
24 signature by the clerk; (B) a list of all counsel or unrepresented parties in the foreign action, their
25 addresses, telephone numbers and email addresses; and (C) the required filing fee designated and
26 published by the court in which the foreign subpoena or court order from the foreign jurisdiction
27 is submitted. A request for the issuance of a subpoena under this section shall not constitute an
28 appearance in the courts of the commonwealth. An unrepresented party may request issuance of

a subpoena pursuant to this section; provided, however, that they may sign the foreign subpoena only if authorized by the laws of the foreign jurisdiction.

(ii) When a party submits a foreign subpoena to a clerk of court, the clerk, in accordance with the court's procedure, shall promptly issue a subpoena for service on the person to which the foreign subpoena is directed.

(iii) A subpoena issued under this section shall: (A) incorporate the terms used in the foreign subpoena; (B) contain the names, addresses, telephone numbers and email addresses of all counsel of record and unrepresented parties in the foreign action ; and (C) include the case caption and case or docket number of the proceeding to which the subpoena relates, along with the name and address of the court issuing the subpoena.

(c) Notwithstanding subsection (b), if a party to a foreign action retains an attorney licensed to practice in the commonwealth, and that attorney receives the original or a true copy of the foreign subpoena, the attorney may issue a subpoena under this section.

(d) Rule 45 of the Massachusetts Rules of Civil Procedure shall apply to subpoenas issued under this section. A subpoena issued under this section shall be served in compliance with Rule 45(c) of the Massachusetts Rules of Civil Procedure.

(e) An application to the court for a protective order or to enforce, quash or modify a subpoena issued under this section shall comply with Rules 26(c) and 45(d)(1) of the Massachusetts Rules of Civil Procedure and be submitted to the applicable court in the county in which discovery is sought.

49 (f) In applying and construing this uniform act, consideration shall be given to the need to
50 promote uniformity of the law with respect to its subject matter among states that enact it.

51 (g) If the foreign jurisdiction has not enacted provisions substantially similar to this
52 section, the foreign subpoena shall comply with the requirements of section 11 of this chapter.

53 SECTION 2. Section 1 shall take effect on January 1, 2026 and shall apply to discovery
54 requests in cases pending as of that date.